

EXHIBIT 38

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

CIVIL MINUTES – GENERAL

#121/122 (6/29 hrg off)

Case No.	CV 18-10513 PSG (KSx)	Date	June 24, 2020
Title	Lexington Luminance LLC v. Feit Electric Company, Inc.		

Present: The Honorable	Philip S. Gutierrez, United States District Judge		
Wendy Hernandez		Not Reported	
Deputy Clerk		Court Reporter	
Attorneys Present for Plaintiff(s):		Attorneys Present for Defendant(s):	
Not Present		Not Present	

Proceedings (In Chambers): The Court CONSTRUES the Disputed Claim Terms as Stated Herein

Plaintiff Lexington Luminance LLC (“Plaintiff”) sued Defendant Feit Electric Company, Inc. (“Defendant”) for patent infringement on December 19, 2018. *See Complaint*, Dkt. # 1 (“*Compl.*”); *see also First Amended Complaint*, Dkt. # 38 (“*FAC*”). Specifically, Plaintiff alleges that Defendant has made, used, sold, offered to sell, and/or imported products that infringe U.S. Patent Nos. 6,936,851 B2 and 6,936,851 C1. *See, e.g. FAC* ¶¶ 7, 8, 12 (defining the two patents collectively as “the ’851 Patent”).

Before the Court are the parties’ disputed patent claim terms for construction. A Joint Claim Construction and Prehearing Statement reflecting the parties’ competing claim construction positions was filed on May 8, 2020. Dkt. # 102 (“*Joint Statement*”). On May 28, 2020, the parties each filed an opening claim construction brief. Dkt. # 115 (“*Pl.’s Op. Br.*”); Dkt. # 114 (“*Def.’s Op. Br.*”). On June 12, 2020, the parties each filed a responsive claim construction brief. Dkt. # 117 (“*Pl.’s Resp. Br.*”); Dkt. # 118 (“*Def.’s Resp. Br.*”).

This matter is deemed appropriate for resolution without oral argument. The June 29, 2020 hearing is accordingly **VACATED**. *See* L.R. 7-15. The Court accepts the demonstratives submitted by the parties, but **DENIES AS MOOT** their requests to present them at the hearing. *See* Dkts. # 121, 122. Having considered the moving papers, the Court **CONSTRUES** the disputed claim terms as stated herein.

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I. Background

U.S. Patent No. 6,936,851 B2 issued August 30, 2005 and is titled “Semiconductor Light-Emitting Device and Method for Manufacturing the Same.” It includes fourteen claims, including what the parties refer to as “former Claim 1.” That claim states:

1. A semiconductor light-emitting device comprising:
a substrate;
a textured district defined on the surface[] of said substrate comprising a plurality of etched trenches having a sloped etching profile with a smooth rotation of microfacets without a prescribed angle of inclination;
a first layer disposed on said textured district; comprising
a plurality of inclined lower portions so as to guide the extended lattice defects away from propagating into the active layer, said first layer and said substrate form a lattice-mismatched misfit system, said substrate is selected from the group comprising group III-V, group IV, group II-VI elements and alloys, ZnO, spinel and sapphire; and
a light-emitting structure containing an active layer disposed on said first layer.

U.S. Patent No. 6,936,851 B2, Claim 1 (hereinafter, “former Claim 1”).¹

On December 5, 2014, U.S. Patent No. 6,936,851 **C1** was issued at the conclusion of an *ex parte* reexamination proceeding for U.S. Patent No. 6,936,851 **B2**. See Reexamination Request No. 90/012,964 (filed Sep. 30, 2013). The United States Patent and Trademark Office concluded that Claims 1 and 3 were patentable as amended during the reexamination proceeding, concluded that Claims 2 and 4 each depended from an amended claim and were patentable, concluded that newly-added Claims 15–18 were patentable, and did not reexamine Claims 5–14. Aside from some claim terms that appear in former Claim 1 of U.S. Patent No. 6,936,851 B2, the parties’ disputed claim terms relate to Claim 2 of U.S. Patent No. 6,936,851 B2 (confirmed patentable in the reexamination proceedings as depending from amended Claim 1) and Claims 1 and 15–18 of U.S. Patent No. 6,936,851 C1. Those claims recite:

¹ Brackets indicate where the claim language was modified by a Certificate of Correction issued January 3, 2012.

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1. A semiconductor light-emitting device comprising:
a substrate;
a textured district defined on the surface of said substrate comprising a plurality of etched trenches having a sloped etching profile with a smooth rotation of microfacets without a prescribed angle of inclination;
a first layer disposed on said textured district, comprising
a plurality of inclined lower portions, said first layer and said substrate form a lattice-mismatched misfit system, said substrate having at least one of a group consisting of group III-V, group IV, group II-VI elements and alloys, ZnO, spinel and sapphire; and
a light-emitting structure containing an active layer disposed on said first layer, whereby said plurality of inclined lower portions are configured to guide extended lattice defects away from propagating into the active layer.

U.S. Patent No. 6,936,851 C1, Claim 1.

2. The device [of] claim 1, wherein said first layer has an upper planar portion with slow defect density.

U.S. Patent No. 6,936,851 B2, Claim 2 (as corrected).

15. A semiconductor light-emitting device comprising:
a substrate;
a textured district defined on the surface of said substrate comprising a plurality of etched trenches having a sloped smooth etching profile without sharp corners and without a prescribed angle of inclination;
a first layer disposed on said textured district, comprising a plurality of inclined lower portions, said first layer and said substrate form a lattice-mismatched misfit system, said substrate having at least one of a group consisting of group III- V, group IV, group II- VI elements and alloys, ZnO, spinel and sapphire; and
a light-emitting structure containing an active layer disposed on said first layer, whereby said plurality of inclined lower portions are

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configured to guide extended lattice defects away from propagating into the active layer.

16. The device of claim 15, wherein the sides of said etched trenches are smooth.

17. The device of claim 15, wherein the sides of said etched trenches are without sharp corners.

18. The device of claim 15, wherein the sides of said etched trenches are without a prescribed angle of inclination.

U.S. Patent No. 6,936,851 C1, Claims 15–18. Unless otherwise necessary, in this Order the Court will refer to these claims as Claims 1, 2, and 15–18 of “the ’851 Patent.” Neither the patent specification nor figures were amended during reexamination proceedings, and the Court will refer to the specification and figures of “the ’851 Patent” in this Order as well.

Plaintiff alleges that “Defendant has infringed and/or continues to infringe . . . one or more claims of the ’851 Patent . . . , including at least claim 1” through 44 specifically-named lighting products, “and other similar products.” *FAC* ¶ 12.

Additional explanation and discussion of the technology claimed by the ’851 Patent will be provided in the relevant discussion sections of this Order.

II. Legal Standard

“The purpose of claim construction is to ‘determin[e] the meaning and scope of the patent claims asserted to be infringed.’” *O2 Micro Int’l Ltd. v. Beyond Innovation Tech. Co.*, 521 F.3d 1351, 1360 (Fed. Cir. 2008) (quoting *Markman v. Westview Instruments, Inc.*, 52 F.3d 967, 976 (Fed. Cir. 1995) (en banc), *aff’d* 517 U.S. 370 (1996)). The Supreme Court has held that claim construction is a matter of law “exclusively within the province of the court.” *Markman*, 517 U.S. at 372. “That is so even where the construction of a term of art has ‘evidentiary underpinnings.’” *Teva Pharm. USA, Inc. v. Sandoz, Inc.*, 135 S. Ct. 831, 835 (2015) (quoting *Markman*, 517 U.S. at 390).

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When construing claim terms, a court must first “look to the words of the claims themselves . . . to define the scope of the patent invention.” *Vitronics Corp. v. Conceptronic, Inc.*, 90 F.3d 1576, 1582 (Fed. Cir. 1996). Words of the claims are “generally given their ordinary and customary meaning,” which is the meaning they “would have to a person of ordinary skill in the art in question at the time of the invention, i.e., as of the effective filing date of the patent application.” *Phillips v. AWH Corp.*, 415 F.3d 1303, 1312–13 (Fed. Cir. 2005) (en banc) (citation omitted).

However, a claim term should be construed “not only in the context of the particular claim in which the disputed term appears, but in the context of the entire patent, including the specification.” *Id.* at 1313. The specification is “the single best guide to the meaning of a disputed term,” and the court should “rely heavily” on it for guidance. *Id.* at 1315, 1317.

Further, a court should consider the patent’s prosecution history—the complete record of the proceedings before the United States Patent and Trademark Office (“PTO”) and the prior art cited during the patent’s examination—because it “provides evidence of how the PTO and the inventor understood the patent.” *Id.* at 1317. “[B]ecause the prosecution history represents an ongoing negotiation between the PTO and the applicant, rather than the final product of that negotiation, it often lacks the clarity of the specification and thus is less useful for claim construction purposes.” *Id.*

Lastly, although less significant than the intrinsic record, courts may “rely on extrinsic evidence, which ‘consists of all evidence external to the patent and prosecution history, including expert and inventor testimony, dictionaries, and learned treatises.’” *Id.* (quoting *Markman*, 52 F.3d at 980). “Extrinsic evidence may be useful to the court, but it is unlikely to result in a reliable interpretation of patent claim scope unless considered in the context of the intrinsic evidence.” *Id.* at 1319.

III. Discussion

A. Agreed Constructions

The parties have agreed to constructions for the following claim terms in the Joint Claim Construction and Prehearing Statement:

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Claim Term	Parties’ Agreed Construction
“disposed on” (Claims 1, 15 ²)	“applied directly or indirectly above”
“active layer” (Claims 1, 15)	“the layer in the light-emitting device that emits the light”
“substrate” (Claims 1, 15)	“the supporting material upon which the other layers of a light-emitting device are grown”
“group III–V . . . elements and alloys” (Claims 1, 15)	“an alloy of at least one group III element (<i>i.e.</i> , boron, aluminum, gallium, indium, thallium) and at least one group V element (<i>i.e.</i> , nitrogen, phosphorous, arsenic, antimony, bismuth)”
“group IV . . . elements and alloys” (Claims 1, 15)	“a group IV element alone (<i>i.e.</i> , carbon, silicon, germanium, tin, lead) or an alloy of two or more group IV elements”
“group II–VI . . . elements and alloys” (Claims 1, 15)	an alloy of at least one group II element (<i>i.e.</i> , beryllium, magnesium, calcium, strontium, barium, radium) and at least one group VI element (<i>i.e.</i> , oxygen, sulfur, selenium, tellurium, polonium)”
“lattice-mismatched misfit system” (Claims 1, 15)	“a system in which a crystal layer having one lattice constant is disposed on a substrate that has a different lattice constant”
“said substrate is selected from the group comprising group III–V, group IV, group	“said substrate including, but not limited to, at least one of the following: group III–V elements and alloys, group IV elements

² In identifying claims in the various charts in this Order, the Court refers only to the claims identified by the parties in which a claim term actually appears. The parties’ claim identification also included certain dependent claims that depend from a claim in which the claim term appears. The Court acknowledges the parties’ apparent agreement that the meaning of the claim term should not change when the term is being evaluated in the context of a dependent claim that depends from the claim in which the term actually appears, despite the dependent claim not explicitly re-reciting the claim term itself.

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II–VI elements and alloys, ZnO, spinel and sapphire” (former Claim 1)	and alloys, group II–VI elements and alloys, ZnO, spinel, and sapphire”
“the sides of said etched trenches are without a prescribed angle of inclination” (Claim 18)	“the sides of said etched trenches are without a constant angle of inclination”

See *Joint Statement*, Ex. A (Dkt. # 102-1).

Defendant also subsequently agreed to Plaintiff’s proposed constructions for the following claim terms:

Claim Term	Parties’ Agreed Construction
“having” (Claims 1, 15)	“including but not limited to”
“having at least one of a group consisting of groups III–V, group IV, group II–VI elements and alloys, ZnO, spinel and sapphire” (Claims 1, 15)	“said substrate including, but not limited to, at least one of the following: group III–V, group IV, group II–VI elements and alloys, ZnO, spinel, and sapphire”

The Court accepts the parties’ agreed constructions, which will bind them. See *MyMail, Ltd. v. Am. Online, Inc.*, 476 F.3d 1372, 1377–78 (Fed. Cir. 2007) (rejecting appellate challenge to claim construction agreed to by party in district court).

B. Disputed Terms

1. “etched trenches” (Claims 1, 15–18)

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“areas in the surface of the substrate from which some amount of material has been removed by an etching process in order to create a pattern on the surface of the substrate”	“areas in the surface of a substrate from which some amount of material has been removed by an etching process”

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The parties’ disagreement regarding the construction of the term “etched trenches” focuses on Plaintiff’s proposal to include the phrase “in order to create a pattern on the surface of the substrate” in a construction. Specifically, the parties disagree about the meaning and import of the word “pattern.”

Plaintiff suggests that by using the word “pattern,” Plaintiff simply means “three-dimensional surface features.” *See Pl.’s Resp. Br.* 3 n.1. Plaintiff argues that the phrase “in order to create a pattern on the surface of the substrate” is necessary to encapsulate the concept of a trench. *Id.* 2:19–21. Plaintiff asserts that Defendant’s proposal “suggest[s] that any etched area, even if it were entirely flat, could be an ‘etched trench.’” *Id.* (emphasis in original). Defendant, meanwhile, suggests that the word “pattern” carries the connotation of a “repetition of [a] design.” *Def.’s Resp. Br.* 2:20–22. Defendant’s primary objection to Plaintiff’s proposal is that introducing the concept of “pattern” is inappropriate because there is no basis to find that a top-down view of the top of the substrate would reveal some type of “design.” *See, e.g. id.* 2:6–11.

Contrary to Plaintiff’s position, the phrase “pattern on the surface of the substrate” does not on its face necessarily provide any requirement that the “pattern” be three-dimensional. The Court, however, agrees based on its review of the record with Plaintiff’s assertion that the etched trenches must be three-dimensional in nature. As to Defendant’s position, the Court is not persuaded that the term “pattern” is used in the ’851 Patent in the manner Defendant suggests, *i.e.* as requiring a repeated “design.” The parties do not present a dispute over the underlying meaning of the term, but just how to describe it.

To address the concerns stated by the parties in their briefs, the Court construes the term “etched trenches” as “areas in the surface of the substrate where some amount of material has been removed by an etching process in order to create three-dimensional features on the surface of the substrate.”

2. “layer” (*Claims 1, 2, 15*)

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“a thickness of material, which may be made up of sublayers, but does not refer to a substrate”	“a thickness of material having a lattice constant that is disposed on a substrate”

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The parties present three disputes regarding a construction of the term “layer.” First, they dispute whether the term “layer” should be construed to require that it is “disposed on a substrate.” Second, they dispute whether it should be construed to require that it “hav[e] a lattice constant.” Third, they dispute whether a layer as claimed in the ’851 Patent “may be made up of sublayers.” The parties apparently agree that a layer is a “thickness of material” and that as used in the claims, it is distinct from the substrate itself.

Regarding the parties’ first dispute, although Plaintiff does not explicitly say it, Plaintiff appears to express concern that a juror might believe a layer “disposed on” a substrate must be directly disposed on the substrate. *Pl.’s Op. Br.* 5:23–6:3; *see also Pl.’s Resp. Br.* 3:7–20. But as Defendant notes, the parties agreed to a construction of “disposed on” as “applied directly or indirectly above.” *Def.’s Resp. Br.* 3:1–5. Although Plaintiff’s position appears unsupported, including the phrase “disposed on a substrate” in the construction of this term is unhelpful to understanding the meaning of the term “layer,” and redundant given the surrounding claim language itself. *See, e.g.* ’851 Patent, Claim 1 (requiring “a textured district defined on the surface of said substrate” and “a first layer **disposed on** said textured district”).

Regarding Defendant’s proposal to include “having a lattice constant” in the construction of “layer,” it is unclear whether incorporating this limitation is appropriate in the context of the claimed “active layer.” Plaintiff argues, without support, that “Defendant’s proposal is incorrect because the patent refers to the ‘active layer’ as a ‘layer,’ but makes no mention of the active layer requiring, or even having, a lattice constant.” *Pl.’s Op. Br.* 6:27–7:1. Defendant responds, without support, that “Lexington never denies that an active layer can have a lattice constant.” *Def.’s Op. Br.* 3:18–20. Defendant does not cite to portions of the record showing that the patent applicant intended to limit the meaning of the term “layer,” including in the context of the larger phrase “active layer,” to require a lattice constant. Defendant’s assertion that an active layer “can” have a lattice constant does not sufficiently address the issue. In the context of the “first layer,” the limitation also again appears redundant, given the parties’ agreed construction for the term “lattice-mismatched misfit system.” The Court thus declines to limit the meaning of the term “layer” to require a “lattice constant.”

As to the parties’ third dispute, the Court agrees with Plaintiff that the ’851 Patent does not exclude the possibility of a layer being made up of “sublayers.” The claims already refer to, for example, the “first layer” as having “inclined lower portions.” *See, e.g.*, ’851 Patent, Claim 1. Claim 2 further states, “wherein said first layer has an upper planar portion.” *Id.* at

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Claim 2. In comparison, the '851 Patent specification describes Figure 1B as showing “inclined layers **12**” and an “upper section **14** of the structure [that] becomes planar.” '851 Patent, 4:47–54.

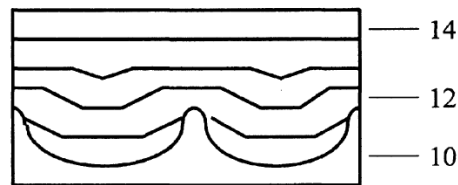


Fig. 1B

Id. at Fig. 1B. The claims’ references to “portions” of the “first layer,” including an “upper planar portion,” and the comparison to Figure 1B’s disclosure, including of an “upper section,” supports Plaintiff’s position. That the claims and specification of the '851 Patent do not use the word “sublayer” does not warrant a different outcome on the current record. There is no basis presented to support limiting the meaning of the term “layer” in the context of the patent to exclude layers made up of sublayers.

The term “layer” is construed consistent with Plaintiff’s proposal as “a thickness of material, which may be made up of sublayers, but does not refer to a substrate.”

3. “*comprising a plurality of inclined lower portions*” (Claims 1, 15)

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“including two or more lower portions that are inclined relative to the overall plane of the substrate”	“including two or more areas toward the bottom of the first layer that are slanted relative to the overall plane of the substrate”

The parties have two disputes regarding the meaning of the term “comprising a plurality of inclined lower portions.” First, they dispute whether a construction should swap the term “inclined” for the word “slanted.” Second, they dispute whether the phrase “lower portions” should be interpreted to mean “areas toward the bottom.”

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The parties’ first dispute is entirely semantic. Neither party argues that the terms “inclined” and “slanted” have different meanings. Defendant instead urges that a juror would not understand the word “inclined,” and the Plaintiff responds that the word “inclined” is easily-understandable. *Def.’s Op. Br.* 9:19–20; *Pl.’s Resp. Br.* 4:15–21; *see also Def.’s Resp. Br.* 4:4–6. The term “inclined” is a non-technical term often used in common parlance that should not be confusing to the jury, and on the current record the Court sees no value in swapping it for the term “slanted.”

The parties’ second dispute is also somewhat semantic. A juror is likely to understand the non-technical phrase “lower portion.” Plaintiff also suggests that Defendants’ proposal to swap “areas” for “portions” changes the meaning of the phrase. Plaintiff uses notated figures suggesting that the phrase “lower portion” refers to an inclined **side surface** of the substrate, not to a lower **area** on and near the bottom surface of the substrate. *See Pl.’s Op. Br.* 8:5–25. It is not clear whether the parties’ “portion” versus “area” dispute is a substantive disagreement relevant to dispositive issues in the case, such as infringement or invalidity. *See also Def.’s Resp. Br.* 4:15–23 (referring to Plaintiff’s annotated images from its opening brief and adding further annotations to emphasize that under Defendants’ proposed construction, the “area toward the bottom” has inclined **sides**). Neither party cites evidence (beyond the claim phrase itself) to support their positions on this issue, and the Court does not have sufficient information to decide it. The Court declines to swap the word “portion” for “area” in this claim term.

Although it is not necessarily clear that the term “comprising a plurality of inclined lower portions” requires construction at all, the Court construes it to reflect the parties’ agreement that “plurality” means “two or more” and that “inclined portion” is “inclined relative to the overall plane of the substrate.” The term is construed as “including two or more lower portions that are inclined relative to the overall plane of the substrate.”

4. “microfacets” (Claim 1)

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“very small planes that make up a surface contour”	“small planar crystal surfaces on the order of microns in size”

The term “microfacets” appears in Claim 1, which requires, *inter alia*:

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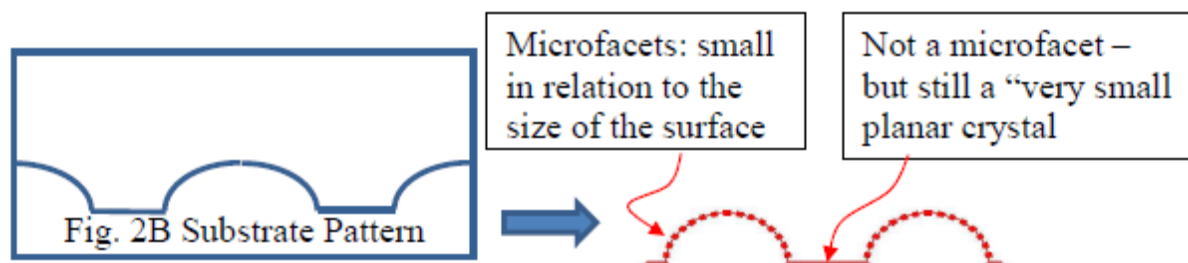
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a textured district defined on the surface of said substrate comprising ***a plurality of etched trenches having a sloped etching profile with a smooth rotation of microfacets*** without a prescribed angle of inclination;

'851 Patent, Claim 1 (emphasis added).

The parties focus their arguments for the meaning of the term “microfacet” around a “figure that Lexington created for use in a prior proceeding by modifying Fig. 2B of the '851 patent.” *Def.’s Op. Br.* 12:1–2. Lexington’s figure, annotated with its assertions, shows:



Pl.’s Op. Br. 10:11–15. Defendant disagrees with Plaintiff’s position that the planar crystal surface between the inclined surfaces is “not a microfacet.” *See, e.g., Def.’s Op. Br.* 12:19–23.

The parties apparently raise this dispute to further their respective positions about how to describe the appropriate size of a microfacet. Plaintiff argues that its proposal that the microfacets be “very small” is intended to highlight their size “***in relation to*** the surface contour, i.e., the substrate pattern feature.” *Pl.’s Op. Br.* 9:20–22 (emphasis in original). Plaintiff then refers to its annotated figure and argues,

[i]t is important to differentiate the very small planar crystal surfaces that *individually* constitute the flat substrate base portions between the substrate surface features (which are also very small) from the very small planar crystal surfaces that *collectively* make up the sloped profile of the crystalline substrate surface features themselves.

Pl.’s Op. Br. 10:1–6 (emphasis in original). Defendant argues that the term “very” in Plaintiff’s proposed construction “offers no limit or boundary as to how small a ‘facet’ has to be in order to be considered a ‘microfacet.’” *Def.’s Op. Br.* 11:3–5. Defendant argues that its proposal, in

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comparison, “provides a meaningful limitation for the term ‘microfacets’ by tying the ordinary meaning of ‘micro’ to the unit of measure ‘micron.’” *Id.* 13:1–3. Discussing Plaintiff’s figure and an expert declaration from another case, Defendant argues that the planar space between the inclined surfaces can include microfacets. *Id.* 12:19–23. Defendant also challenges Plaintiff’s use of the phrase “surface contour” in its proposed construction, arguing that “all surfaces, even flat ones, can be called a ‘surface contour.’” *Id.* at 27–28.

First, as Plaintiff notes, whether or not the planar surface shown in its annotated figure could be considered a microfacet or a collection of microfacets in the abstract sense appears irrelevant here. Claim 1 specifically refers to microfacets where it requires “etched trenches having a ***sloped etching profile with a smooth rotation of microfacets.***” ’851 Patent, Claim 1 (emphasis added). In considering the ’851 Patent and this particular claim limitation in an appeal of a claim construction determination in another case, the Federal Circuit explained,

the claim includes the phrase “with a smooth rotation of micro-facets without a prescribed angle of inclination,” but that phrase modifies the “sloped etching profile” rather than “trenches.” Accordingly, the claimed trenches can have, in addition to sloped areas, areas of a flat bottom as well as corners where the flat bottom and the inclined slope intersect with each other.

Lexington Luminance LLC v. Amazon.com Inc., 601 Fed. App’x 963, 971 (Fed. Cir. 2015). The parties have not submitted sufficient evidence to support departing from the Federal Circuit’s determination that the outline of “sloped areas” (*i.e.*, “sloped etching profile[s]”) are separate from the “areas of a flat bottom.”³ Nor have they submitted evidence to support departing from the Federal Circuit’s determination that the phrase “smooth rotation of microfacets . . .” modifies “sloped etching profile.” The claim language, including as interpreted by the Federal Circuit, supports Plaintiff’s position that Claim 1 uses the phrase “microfacet” when referring to sloped areas (*i.e.* the side surfaces), not planar bottom surfaces of any etched trenches.

However, the Court agrees with Defendant that the phrase “make up a surface contour” is confusing, given that the concept of a “surface contour” does not appear in the ’851 Patent and does not necessarily have a clear meaning. Nor does it necessarily reflect Plaintiff’s

³ Defendant presents a claim differentiation argument related to the dispute over the meaning of “sloped surface profile” that is addressed in a later section, and found unpersuasive.

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argument that Plaintiff’s proposed construction highlights the relative size of the larger sloped etched surface compared to the smaller individual microfacets.

Second, Defendant does not identify evidence in the intrinsic record to support that the patent applicant intended to limit the meaning of the term “microfacet” to refer only to crystal surfaces “on the order of microns in size.” Defendant’s suggestion that “micro-” necessarily relates to micron-level measurements is not persuasive nor supported by any intrinsic or extrinsic evidence. Defendant’s sole citation is to a claim construction order from a court in the District of Massachusetts in an action involving the same parties, where the court construed this claim term in the manner proposed by Defendant. *Lexington Luminance LLC v. Feit Electric Company, Inc.*, Case No. 12-11554-WGY, Dkt. # 43, at *3 (D. Mass. Jun 25, 2013).⁴ However, the order simply sets forth a claim construction chart; no analysis is provided for the determination the court reached in that case. The Court finds insufficient basis to support Defendant’s position.

Regarding Plaintiff’s proposal to include the adjective “very” in describing the “very small size” of microfacets, the Court does not share Defendant’s indefiniteness concerns. The Federal Circuit, considered a construction of “microfacet” as “very small planar crystal surfaces” after the Supreme Court had already issued its decision in *Nautilus, Inc. v. Biosig Instruments, Inc.*, 572 U.S. 898 (2014). It found no error in the construction. *See Amazon.com Inc.*, 601 Fed. App’x at 966, 968, 972. Particularly when placed in the proper context, including when compared to the relative size of the overall sloped surface features, Defendant has not shown that a person of skill would be unable to ascertain the scope of a “very small” planar crystal surface in the ’851 Patent.

Having considered the parties’ arguments, the Court construes the term “microfacets” as “planar crystal surfaces that together form sloped surfaces of the trenches, where each microfacet is very small in comparison to a sloped surface.”

⁴ This order is also available at Dkt. # 114-1, ECF123–ECF125 in this case. The Court notes that neither party has argued that issue or claim preclusion applies based on this earlier claim construction determination between them (or any earlier claim constructions that Plaintiff participated in for this asserted patent). Defendant notes that the prior action settled in November 2013. *See Def.’s Op. Br.* 13 n.6.

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5. *“whereby said plurality of inclined lower portions are configured to guide extended lattice defects away from propagating into the active layer” (Claims 1, 15) and “so as to guide the extended lattice defects away from propagating into the active layer” (former Claim 1)*

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“such that the inclined lower portions are shaped to reduce the propagation of extended lattice defects into the active layer”	“the ‘plurality of inclined lower portions’ guide all extended lattice defects away from the active layer”

The parties appear to agree that the term “whereby said plurality of inclined lower portions are configured to guide extended lattice defects away from propagating into the active layer” in reexamined Claims 1 and 15 and the term “so as to guide the extended lattice defects away from propagating into the active layer” in former Claim 1 should have the same meaning. The parties’ claim construction arguments have already been separately considered for the smaller phrases “plurality of inclined lower portions” and “layer” in Claims 1 and 15 that appear in one of these larger disputed claim phrases. The parties also do not seek construction of the phrase “extended lattice defects.”

Instead, the focus of the dispute for these two claim terms is on the smaller claim phrases “configured to guide extended lattice defects away” and “so as to guide the extended lattice defects away” in the respective claims. Defendant argues that these phrases should be construed simply as “guide all extended lattice defects away.” Plaintiff argues that the phrases should be construed as “shaped to reduce the propagation of extended lattice defects.”

The Federal Circuit previously considered the limitation in former Claim 1 “so as to guide the extended lattice defects away” and found it was not indefinite. Amazon, defendant in that case, had essentially argued that the word “the” in the phrase “the extended lattice defects” had no antecedent basis. As part of its comments on the issue, the Federal Circuit stated:

As the district court correctly noted, the specification explains that “the goal of the invention is to ‘reduce’ the number of lattice defects.” ***The contested claim language specifies the intended function or purpose of the claimed structure.*** It thus applies wherever the function or purpose requires. ***We therefore agree with***

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the district court that the claim is not indefinite for not specifying “exactly how many defects [were] reduced.”

Amazon.com, 601 Fed. App’x at 969 (emphasis added) (citations to district court’s claim construction order omitted).

Defendant’s reference to “all” lattice defects in its proposed construction is contrary to this aspect of the Federal Circuit’s decision. The Federal Circuit specifically acknowledged that the claim language does not specify “exactly how many defects” are reduced. The claim language itself, including as interpreted by the Federal Circuit, supports that the “so as to guide . . . away” and “configured to guide . . . away” language addresses, in part, the intended function or purpose of the claimed structure. Modifying that language to require that every single extended lattice defect is necessarily guided away from propagating in the active layer is contrary to the claim language, as well as the purpose of the invention disclosed in the specification of the ’851 Patent. *See also Lexington Luminance LLC v. Amazon.com et al.*, Case No. 12-cv-12216-DJC, Dkt. # 196, at *15 (D. Mass. Apr. 4, 2016) (“There is no support in the intrinsic evidence for such an exacting requirement – a requirement, moreover, that would be contrary to the Federal Circuit’s determination that the overall goal of this patent is reduction of defect density.”).⁵ If the patent applicant had intended such a strict interpretation to apply, the claims could have been drafted to say “configured such that **no** extended lattice defects propagate into the active layer.”

For similar reasons, Defendant’s assertion that “guide” is an appropriate construction for the phrases “so as to guide . . .” and “configured to guide. . .” is unpersuasive. In general, patent claims should be construed to give meaning to each word in the claims. *Akzo Nobel Coatings, Inc. v. Dow Chem. Co.*, 811 F.3d 1334, 1340 (Fed. Cir. 2016). If the patent applicant had intended to simply use the term “guide,” it could have done so. Instead, the phrases “so as to” and “configured to” are part of the signal that these claim limitations relate to the intended function or purpose of the claimed structure. Moreover, as Plaintiff notes in its responsive claim construction brief, the effect of adopting Defendant’s proposal would be to incorporate a requisite “process” (*i.e.*, “guiding”) into a “product” claim. Doing so would be inconsistent with Federal Circuit authority, and could lead to uncertainty about when these apparatus claims are infringed. *IPXL Holdings, L.L.C. v. Amazon.com, Inc.*, 430 F.3d 1377, 1384 (Fed. Cir.

⁵ Order also available at Dkt. # 115-5 in this case.

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2005) (claim covering both an apparatus and a method of use of that apparatus invalid as indefinite).

The Court does note that Plaintiff seeks a construction of these claim phrases that gives them structural connotation. Instead of arguing these claim phrases *purely* recite the intended function or purpose of the claimed structure, Plaintiff proposes a construction that characterizes the claim phrases in relation to the structure of the “inclined lower portions.” However, it is not clear that Plaintiff’s modifications to the plain claim language are warranted. Although Defendant’s arguments about the meaning of Plaintiff’s proposed claim construction phrase “shaped to reduce” are not particularly persuasive, Plaintiff’s proposed construction is arguably narrower than the claim language itself. Plaintiff’s proposal would require that the way the claimed structures (the “inclined lower portions”) satisfy the intended function of “guid[ing] extended lattice defects away” is by being “shaped” to do so. But under the plain meaning of the “so as to guide” and “configured to guide” claim phrases, something else about the “configur[ation]” or structure of the “inclined lower portions” could also impact their ability to “guide extended lattice defects away.” *Amazon.com*, Case No. 12-cv-12216-DJC, at *18–19. Neither party has presented a basis to limit the claim meaning to require that the “shape” of the “inclined lower portions” dictates satisfaction of this claim limitation.

The Court finds that no construction is necessary for the claim terms “whereby said plurality of inclined lower portions are configured to guide extended lattice defects away from propagating into the active layer” in reexamined Claims 1 and 15 and the term “so as to guide the extended lattice defects away from propagating into the active layer” in former Claim 1.

6. “a sloped [smooth] etching profile . . . without a prescribed angle of inclination” (Claims 1, 15)

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“when viewed in outline from the side, the trenches have etched sloped sides without a constant angle of inclination” furthermore, the term “without a prescribed angle of inclination” modifies the entire sloped sides of the etching profile, and not only its constituent	“slanted relative to the overall plane of the substrate without a constant angle of inclination when viewed in cross-section”

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segments; or alternatively, the entire portion of the etching profile that is sloped is to be curved.

furthermore, “etching” is three-dimensional.⁶

The parties have three primary disputes regarding the meaning of the claim phrase “a sloped [smooth] etching profile . . . without a prescribed angle of inclination.” However, some of their disputes are multi-part. First, the parties dispute the meaning of the smaller phrase “sloped [smooth] etching profile.” Second, they dispute whether the “sloped [smooth] etching profile” is based on a “view[] in cross-section” or a “view[] in outline from the side.” Third, they dispute Plaintiff’s proposed statements about the phrase “without a prescribed angle of inclination,” including Plaintiff’s assertion that it modifies “the entire sloped sides, and not only its constituent segments.” Defendant also swaps the word “slanted” for the claim phrase “sloped.” However, the parties do not discuss this, and for the same reasons provided regarding Defendant’s swap of “slanted” for “inclined,” Defendant’s proposal to swap “slanted” for “sloped” here is rejected. The Court also notes that Defendant does not appear to dispute, necessarily, that etching is three-dimensional, as Plaintiff argues. *See Def.’s Resp. Br.* 10:19–23 (simply arguing that this requirement for “etching” should have been proposed in the context of the claim phrase “etched trenches,” but not necessarily disputing it). The Court has already construed the term “etched trenches” in a manner that reflects the etched trenches’ three-dimensional nature.

⁶ In the parties’ Joint Claim Construction and Prehearing Statement Lexington proposed slightly different constructions for the phrase “a sloped etching profile . . . without a prescribed angle of inclination” in Claim 1 and “a sloped **smooth** etching profile . . . without a prescribed angle of inclination” in Claim 15. Defendant objects to Plaintiff’s late modifications to its proposed constructions in its opening claim construction brief, including as being confusing. *See, e.g. Def.’s Resp. Br.* 8:12–19. Given the nature of the parties’ disputes and the similarity of the two claim terms at issue, the Court will consider Plaintiff’s late modifications to these constructions, which make its proposed construction essentially the same for each term. The Court notes that Defendant proposed the same claim construction for both of these claim terms as well.

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In considering the parties’ first dispute over the meaning of “sloped [smooth] etching profile,” the Court first notes that the term “profile” as used in the claim language appears to refer to the outline created by the three-dimensional surface features of the substrate when they are viewed from a particular angle. This understanding aligns with the laymen’s understanding of the term “profile.” For example, a side profile of a person’s face shows the contours of a person’s forehead, nose, lips, and chin. In both parties’ proposed constructions, although that concept is suggested, it is buried in other characterizations of the surrounding claim language.

The phrase “sloped etching profile” was previously discussed in this Order in the context of the parties’ dispute over the construction of the term “microfacets.” As noted there, Plaintiff effectively set forth its position that “**sloped etching** profile” refers to the inclined surfaces of the etched trenches, not bottom, planar surfaces. And as already discussed, the Court finds that this understanding is consistent with the phrase as used in the ’851 Patent, including as interpreted by the Federal Circuit.

In the context of the “microfacet” term, Defendant acknowledged that this was Plaintiff’s position, but did not clearly present a competing view. Now, in the context of the larger term “a sloped [smooth] etching profile . . . without a prescribed angle of inclination,” Defendant raises a claim differentiation argument to assert that Plaintiff’s interpretation is incorrect. *See, e.g. Def.’s Resp. Br.* 9:3–6. But of note, beyond criticizing Plaintiff’s interpretation, Defendant still does not necessarily explain its competing view of what the appropriate scope of the phrase should be, in its proposed construction or otherwise.

Claims 16–18 of the ’851 Patent state, “wherein the sides of said etched trenches are [smooth or without sharp corners or without a prescribed angle of inclination.” Defendant argues that because these dependent claims already refer to the sides of the etched trenches, the phrase “sloped [smooth] etching profile” in the independent claims must have a broader meaning. Claim differentiation, however, simply creates a presumption that an independent claim has a broader meaning, not a hard rule. *ICU Med., Inc. v. Alaris Med. Sys., Inc.*, 558 F.3d 1368, 1376 (Fed. Cir. 2009) (“[claim differentiation] doctrine is not a rigid rule but rather is one of several claim construction tools.”). In this particular case, Claim 15 on its face requires a “sloped smooth etching profile without sharp corners and without a prescribed angle of inclination.” Claims 16–18 appear largely redundant of this claim even under Defendant’s interpretation, as they just focus in on “sides” of the “sloped smooth etching profile,” even though the “sloped smooth etching profile” of Claim 15 must already have the properties listed in Claims 16–18. Where the dependent claims are already essentially superfluous, they do not

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provide strong evidence to also support broadening the meaning of the independent claim beyond its intended scope. *Curtiss-Wright Flow Control Corp. v. Velan, Inc.*, 438 F.3d 1374, 1381 (Fed. Cir. 2006) (“claim differentiation can not broaden claims beyond their correct scope.” (internal quotations omitted)). The Court also notes there is still a distinction between a “profile,” *i.e.* the outline view of the sloped sides, versus the sloped sides themselves. In other words, there is not necessarily a claim differentiation issue at all. In addition, for the reasons previously stated, including a review of the claim phrase itself and the Federal Circuit’s interpretation of it, there are other reasons to conclude that the claim differentiation presumption does not apply. Ultimately, Defendant’s apparent position – that “sloped [smooth] etching profile” should not be limited as referring to the outline of the sloped surfaces of the etched trenches – is found unpersuasive.

Regarding the parties’ second dispute – the proper “view” for observing the “sloped etching profile” – Defendant’s position seems to shift slightly in its responsive claim construction brief. It argues in that brief that

a person of ordinary skill in the art would look to the ’851 patent and see that the patent consistently shows one way of taking a cross-section – on end in relation to the trenches [I]f one looks at a trench from the end, one would see the U-shaped or V-shaped outlines as are shown in the ’851 patent.

Def.’s Resp. Br. 10:3–10 (emphasis in original). The distinction between viewing the etched trenches “from the end” or “from the side” is not clear to the Court. Beyond citations to the patent figures, Defendant does not explain how its nomenclature actually leads to a different outcome from the intent of Plaintiff’s proposal. The phrase “on end” is not used in common parlance to explain an angle of viewing, and a juror is much less likely to understand what it means compared to viewing something “from the side.” Without further information about what the parties perceive as the difference between their two proposals about the proper “view,” and without knowing its relevance to dispositive issues in this case such as infringement or invalidity, the Court will adopt the proposal that will be more readily-understood by a jury. The Court also agrees with Plaintiff that Defendant’s original proposal, “when viewed in cross-section” is unclear and could be misinterpreted, including in the manners discussed in previous cases involving the ’851 Patent. *See Pl.’s Op. Br.* 16:6–17:12.

Finally, for the parties’ third dispute, they disagree over Plaintiff’s proposal to require that “without a prescribed angle of inclination” modifies “the entire sloped sides, and not only

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its constituent segments.” Plaintiff argues that these limits on the meaning of the phrase “without a prescribed angle of inclination” are warranted, stating,

the *inclined* portions of the “sloped etching profile” cannot contain straight line segments. In other words, the inclined portions of the “sloped etching profile” must be curved along the entire side of the trench. And, of course, the restriction on the “sloped etching profile” is applied to the *sloped* portion of the etching profile (not any flat portions or non-inclined portions).

Pl.’s Op. Br. 13:28–14:6 (emphasis in original). It provides further support for its position, including discussing a prior art reference to Tanaka showing short, straight-line segments forming a trench, with each straight-line segment having a particular angle of inclination. *Id.* 17:20–18:8. Defendant responds by noting that not all of Plaintiff’s assertions are necessarily reflected in the phrases it uses for its proposed constructions. *Def.’s Resp. Br.* 8:25–27 (“Lexington’s argument ignores that Lexington’s proposed construction does not contain the words ‘cannot contain straight line segments’ and offers ‘curved’ as an alternative.”). Defendant also observes that Plaintiff’s proposed phrases “the entire sloped sides” and “constituent segments” do not appear in the ’851 Patent itself. *Id.* 9:6–8; *see also id.* 10:17–19 (“Lexington’s addition of the explanatory phrase that includes ‘constituent segments’ is something made up by Lexington that has no place in a proposed construction because it is divorced from the specification.”). But beyond asserting that these phrases do not appear in the specification (and thus, according to Defendant, are “divorced” from it), Defendant never asserts that Plaintiff’s position is incorrect *on the merits*, let alone provides a reasoned basis supported by evidence to show that Plaintiff is incorrect on the merits. Defendant’s proposed construction itself simply repeats the claim phrase “without a constant angle of inclination,” with no further explanation of that term’s meaning. As teed up by the parties’ briefs, all the Court sees is another semantic dispute here. Setting aside whether Plaintiff’s proposed constructions are sufficiently phrased to support Plaintiff’s positions, the plain claim language in combination with the evidence identified and discussed by Plaintiff in its briefs supports the characterizations of the claim language that Plaintiff makes in its briefs.

For these reasons, the Court construes the smaller term “a sloped [smooth] etching profile” as “the outline of the sloped [smooth] surfaces of the etched trenches, when the etched trenches are viewed from the side.” The Court construes the smaller term “without a prescribed angle of inclination” as meaning “curved along the full length, without any straight portions.”

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7. *“a sloped etching profile with a smooth rotation of microfacets” (Claim 1)*

Plaintiff’s Proposed Construction	Defendant’s Proposed Construction
“when viewed in outline from the side, the trenches have etched sloped sides made up of a rotation of microfacets that approximate a smooth curve”	“slanted relative to the overall plane of the substrate when viewed in cross-section and without sharp corners”

The parties’ proposed constructions for the terms “a sloped etching profile with a smooth rotation of microfacets” repeat some of the characterizations of the claim language that the Court has already addressed. Specifically, the Court has already resolved the parties’ disputes regarding “a sloped etching profile” and the term “microfacet.” What remains are the parties’ proposed constructions for the phrase “smooth rotation of microfacets.” Plaintiff proposes “rotation of microfacets that approximate a smooth curve.” Defendant’s proposal omits any reference to the “microfacets” concept, but does inject the phrase “without sharp corners.”

Defendant argues that Plaintiff’s proposed phrase “approximate a smooth curve” is “vague,” where the ’851 Patent figures simply show curves, not “approximate” curves. *Def.’s Op. Br.* 20:5–9. Defendant also argues that the phrase “smooth curve” is redundant because according to Defendant, all curves are, by their nature, smooth. *Id.* 20:11. Plaintiff objects to Defendant’s proposed construction by arguing that the phrase “without sharp corners” will read out preferred embodiments in the patent specification. Specifically, Plaintiff notes that where the sloped surfaces meet each other or intersect with flat bottom portions of the etched trenches, certain embodiments show an intersection at a sharp angle. *See Pl.’s Op. Br.* 22:1–3.

Having considered both parties’ arguments, the Court agrees with each party’s criticisms of the other parties’ modifications to the plain claim language. Neither party has a satisfactory response to the other’s comments. Particularly in light of the other claim construction determinations reached in this Order, including those construing the smaller claim limitations “microfacets” and “sloped etching profile,” and without knowing the impact of the parties’ competing positions on dispositive issues in this case, the Court finds no construction is necessary for the larger phrase “a sloped etching profile with a smooth rotation of microfacets.”

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IV. Conclusion

The Court **CONSTRUES** the disputed claim terms as follows:

Term (Claim No(s).)	Court’s Construction
“etched trenches” (Claims 1, 15–18)	“areas in the surface of the substrate where some amount of material has been removed by an etching process in order to create three-dimensional features on the surface of the substrate”
“layer” (Claims 1, 2, 15)	“a thickness of material, which may be made up of sublayers, but does not refer to a substrate”
“comprising a plurality of inclined lower portions” (Claims 1, 15)	“including two or more lower portions that are inclined relative to the overall plane of the substrate”
“microfacets” (Claim 1)	“planar crystal surfaces that together form sloped surfaces of the trenches, where each microfacet is very small in comparison to a sloped surface”
“whereby said plurality of inclined lower portions are configured to guide extended lattice defects away from propagating into the active layer” (Claims 1, 15) <u>and</u> “so as to guide the extended lattice defects away from propagating into the active layer” (former Claim 1)	No construction

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Term (Claim No(s).)	Court's Construction
“a sloped [smooth] etching profile . . . without a prescribed angle of inclination” (Claims 1 & 15)	<u>smaller term “a sloped [smooth] etching profile” construed as:</u> “the outline of the sloped [smooth] surfaces of the etched trenches, when the etched trenches are viewed from the side” <u>smaller term “without a prescribed angle of inclination” construed as:</u> “curved along the full length, without any straight portions.”
“a sloped etching profile with a smooth rotation of microfacets” (Claim 1)	No construction

IT IS SO ORDERED.